

CUSTOM HUMIDOR BUILD & PURCHASE AGREEMENT

Listening Owls LLC, an Illinois limited liability company, doing business as **Dunn’s Luxury Selections** (“**DLS**,” “we,” “us,” or “our”), and the customer identified in the Order Summary below (“**Client**,” “you,” or “your”), agree to the following terms for the design, custom fabrication, and sale of a bespoke humidor (the “**Humidor**” or “**Product**”).

This Custom Humidor Build & Purchase Agreement (the “**Agreement**”) is effective on the date the Client signs below and pays the amount required to commence work (the “**Effective Date**”).

1. Order Summary

Field	Detail
Client full legal name	[CLIENT NAME]
Billing address	[ADDRESS]
Shipping / delivery address	[ADDRESS]
Email / phone	[EMAIL] / [PHONE]
Product description	[MODEL / LINE — e.g., Humidor Supreme® custom build]
Agreed specifications	[WOOD, FINISH, INTERIOR CEDAR, CAPACITY, HARDWARE, ENGRAVING, ETC. — or “see attached Design Sheet”]
Total Product Price	[\$[TOTAL]] (USD)
Selected payment method	☐ Direct Payment ☐ Flexible Financing
Estimated completion	30–45 calendar days (see Section 4)
Order reference	DLS-Belle1 / [ORDER #]

2. Scope of Work

2.1 DLS will design and hand-build one (1) custom Humidor according to the specifications set out in the Order Summary and any attached design sheet, renderings, or written approvals (collectively, the “**Specifications**”).

2.2 **Design approval.** DLS will provide the Client with a final design confirmation (specifications and, where applicable, a rendering or reference image) prior to commencing fabrication. The Client must approve the design in writing (email is acceptable). **The build clock and the production timeline in Section 4 begin only after both (a) the required payment has cleared and (b) the Client has approved the final design.**

2.3 **Handcrafted nature.** The Humidor is a handmade, made-to-order luxury item. Natural variation in wood grain, color, and figure is inherent and expected, and does not constitute a defect. Renderings and samples are representative, not exact.

2.4 **Change requests.** Any change to the Specifications after design approval must be requested in writing and is subject to DLS’s acceptance, a revised price, and a revised timeline. Changes may require an additional deposit.

2.5 **What is included.** The Product is the custom-built humidor cabinet only. Unless expressly listed in the Specifications, accessories such as hygrometers, humidification devices, humidity pouches, and cigars are **not included** and are the Client’s responsibility to obtain. Care and seasoning instructions are provided separately (the “Care Guide”).

3. Price and Payment

The Client selects **one** of the following payment methods in the Order Summary.

3A. DIRECT PAYMENT

3A.1 **Initial payment (70%).** To commence the project, the Client pays **seventy percent (70%)** of the Total Product Price. Work does not begin until this payment clears.

3A.2 **Final payment (30%) + shipping.** The remaining **thirty percent (30%)** of the Total Product Price, **plus all shipping charges**, becomes due once the Humidor is complete and DLS has prepared the logistics/shipping quote. DLS will invoice the Client for this balance. **DLS will not ship or release the Humidor until the 30% balance and all shipping charges are paid in full.**

3A.3 Shipping charges are quoted separately from the Product Price because they depend on the final destination, carrier, insurance, and packaging, which are determined near completion. See Section 5.

3B. FLEXIBLE FINANCING (THIRD-PARTY)

3B.1 DLS offers financing **through an independent third-party financing provider** (for example, Shop Pay Installments, Affirm, or a similar lender) (the “**Financing Provider**”), subject to the Client’s application and the Financing Provider’s approval.

3B.2 If financing is approved, the Financing Provider pays DLS and the Client repays the Financing Provider directly under a **separate agreement between the Client and the Financing Provider**. That separate agreement governs the Client’s installment amounts, interest, fees, and repayment schedule.

3B.3 **DLS is not the lender.** DLS is not a party to the financing agreement, does not set its terms, does not collect installments, and is not responsible for the Financing Provider’s decisions, charges, or servicing. The Client is responsible for reviewing and complying with the Financing Provider’s terms.

3B.4 Shipping charges (Section 5) are **not** necessarily included in the financed amount and may be invoiced separately unless expressly bundled by the Financing Provider at checkout.

3B.5 Once DLS has received cleared funds from the Financing Provider for the required commencement amount, the project proceeds under this Agreement as if paid directly.

3C. GENERAL PAYMENT TERMS

3C.1 All amounts are in U.S. dollars. Prices exclude any applicable taxes, duties, tariffs, and customs fees, which are the Client’s responsibility (see Section 5).

3C.2 Payments are due on the dates stated above or on the invoice. DLS may pause or suspend work if any required payment is late, and any timeline is extended accordingly.

4. Timeline

4.1 **Estimated completion is 30–45 calendar days** from the later of (a) cleared commencement payment and (b) written design approval (Section 2.2).

4.2 This is a **good-faith estimate, not a guaranteed delivery date**. Because each Humidor is handcrafted, timelines may be affected by material availability, wood curing, finishing, and other factors inherent to bespoke work.

4.3 DLS will notify the Client of any material delay. Delays caused by the Client (late approvals, late payments, change requests, or delayed information) extend the timeline day-for-day and are not DLS's responsibility.

4.4 **Force Majeure**. DLS is not liable for delay or non-performance caused by events beyond its reasonable control, including supply shortages, shipping/carrier disruptions, natural disasters, labor disruptions, illness, or governmental action. The timeline is extended by the duration of such events.

5. Shipping, Delivery, Customs & Risk of Loss

5.1 **Client handles shipping and import costs**. The Client is responsible for **all shipping charges** and for **all customs duties, import taxes, tariffs, brokerage, and similar fees** that may apply, including for international destinations. DLS has no control over and does not pre-pay these government-assessed charges.

5.2 DLS will coordinate packaging and provide a shipping/insurance quote once the Humidor is complete. Unless otherwise agreed in writing, the Client's approval of the shipping quote and payment of shipping charges are required before dispatch.

5.3 **Title and risk of loss**. Title to the Humidor passes to the Client upon payment in full. Risk of loss passes to the Client upon delivery of the Humidor to the carrier (FOB / Ex-Works DLS's facility). DLS strongly recommends the Client purchase full shipping insurance; claims for loss or damage in transit are made against the carrier and/or the shipping insurer, not against DLS.

5.4 The Client is responsible for providing a complete, accurate delivery address and for compliance with any import restrictions at the destination. DLS is not responsible for goods seized, delayed, or returned by customs.

6. Cancellations, Deposits & Refunds

6.1 **Short rescission window**. The Client may cancel this Agreement for a **full refund of amounts paid within three (3) calendar days** of the Effective Date, **provided fabrication has not yet begun and materials have not yet been ordered**.

6.2 Deposit non-refundable once the build starts. After the window in Section 6.1 closes — or once DLS has ordered materials or begun fabrication, whichever is earlier — **the 70% initial payment (or the equivalent commencement amount under financing) is non-refundable.** This reflects the custom, made-to-order nature of the Product and DLS's committed materials and labor.

6.3 Client cancellation after build start. If the Client cancels after fabrication has begun, the Client forfeits the non-refundable deposit and remains responsible for any additional costs already incurred by DLS beyond the deposit, if any.

6.4 DLS cancellation. If DLS is unable to complete the Humidor for reasons within its control, DLS's sole obligation is to refund amounts the Client has paid to DLS for the uncompleted work. This does not apply to amounts owed by the Client to a third-party Financing Provider.

6.5 Because the Humidor is custom-made to the Client's Specifications, it is **not eligible for return or refund after delivery** except as required by the limited warranty in Section 7 or by non-waivable law.

7. Limited Warranty

7.1 One-year limited warranty. DLS warrants that the Humidor will be free from defects in materials and workmanship under normal use for **twelve (12) months from the date of delivery.**

7.2 Remedy. The Client's exclusive remedy under this warranty is, at DLS's option, repair or replacement of the defective portion of the Humidor. The Client must notify DLS in writing within the warranty period and, if requested, return the Product or provide photographs/evidence of the defect. Return shipping for warranty service is the Client's responsibility unless otherwise agreed.

7.3 Exclusions. This warranty does **not** cover: (a) normal wear, natural wood movement, or changes in grain/color over time; (b) damage from improper humidity management, over- or under-humidification, or failure to season/maintain the Humidor per care instructions; (c) misuse, abuse, accident, neglect, or unauthorized modification or repair; (d) damage in transit (see Section 5.3); (e) exposure to extreme temperature, moisture, or sunlight; or (f) cosmetic variation inherent to handcrafted goods.

7.4 Disclaimer. EXCEPT FOR THE EXPRESS LIMITED WARRANTY IN THIS SECTION 7, THE PRODUCT IS PROVIDED "AS IS," AND DLS DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE, TO THE FULLEST EXTENT PERMITTED BY LAW.

8. Limitation of Liability

8.1 To the fullest extent permitted by law, DLS's total aggregate liability arising out of or relating to this Agreement or the Product will not exceed the total amount the Client actually paid to DLS for the Product.

8.2 DLS will not be liable for any indirect, incidental, special, consequential, or punitive damages, or for loss of cigars, contents, profits, or goodwill, even if advised of the possibility of such damages.

9. Intellectual Property

Any designs, renderings, drawings, and proprietary techniques created by DLS remain the property of DLS. Upon full payment, the Client owns the physical Humidor but does not acquire rights to reproduce DLS's designs or resell the Product as a DLS-authorized manufacturer.

10. General Terms

10.1 **Governing law.** This Agreement is governed by the laws of the **State of Illinois**, without regard to its conflict-of-laws rules.

10.2 **Venue.** The parties agree that any dispute will be brought exclusively in the state or federal courts located in the **State of Illinois**, and the parties consent to personal jurisdiction there.

10.3 **Dispute resolution (talk to us first).** Before starting any legal action, the parties agree to try in good faith to resolve any dispute directly. The Client will first raise the issue in writing with DLS management at support@dunnluxuryselections.com, describing the concern and the outcome they are seeking. DLS will acknowledge the notice and the parties will discuss the matter in good faith (by phone, email, or video) within **thirty (30) days** of the notice. Neither party may file a lawsuit until this good-faith discussion has taken place or the 30-day period has passed, whichever is earlier. Only if the dispute is not resolved through this process may either party pursue the remedies available in the courts identified in Section 10.2. This section does not prevent either party from seeking urgent injunctive relief where necessary.

10.4 **Entire agreement.** This Agreement, together with the Order Summary and any attached design sheet, is the entire agreement between the parties and supersedes all prior discussions. It may be amended only in a writing signed by both parties. Any financing arrangement with a

third-party Financing Provider is separate and governed by that provider's agreement.

10.5 **Severability.** If any provision is held unenforceable, the remaining provisions remain in effect.

10.6 **Assignment.** The Client may not assign this Agreement without DLS's written consent.

10.7 **Notices.** Notices are given in writing to the email or address in the Order Summary. Notices to DLS may be sent to support@dunnluxuryselections.com.

10.8 **Electronic signature.** The parties agree that electronic signatures and electronically transmitted copies are valid and binding.

11. Acknowledgment & Signatures

By signing below, the Client confirms that they have read and agree to this Agreement, including the **non-refundable deposit** (Section 6), the **shipping and customs responsibilities** (Section 5), the **estimated (non-guaranteed) timeline** (Section 4), and the **limited warranty and liability terms** (Sections 7–8).

LISTENING OWLS LLC (DBA Dunn's Luxury Selections)

Signature: _____ Name: _____ Title: _____
Date: _____

CLIENT

Signature: _____ Name: _____ Date: _____

This document is a template provided for business use and is not legal advice. Listening Owls LLC recommends review by a licensed Illinois attorney before use, particularly regarding consumer-financing disclosures and warranty law.